Module 4: Overview and learning objectives

Reporting incidents of harassment is vital to stopping objectionable behavior and inappropriate conduct. It can become worse when left uncurbed.
When you experience or witness sexual harassment, even if it is unintentional, it is your responsibility to speak up or report it. It is every employee's responsibility to create a safe work environment free from harassment.
Upon completing this module, you will be equipped with the guidelines for complainants and witnesses in reporting and dealing with an alleged perpetrator.
You will understand the function the Complaints Committees serve in reporting, as well as the penalties for perpetrators and opportunities for interim relief for complainants.
You will also understand the importance of confidentiality and the repercussions of retaliation. .

Learning Objectives:

- Outline guidelines for complainants and all employees.
- Explain the role of the internal committee, its reporting process, and interim relief options.
- Describe the scope of disciplinary actions against alleged perpetrators or false complaints.
- Identify measures for ensuring confidentiality and handling retaliation to complaints.

Guidelines for complainants

Every employee should read and become familiar with the POSH Act and their specific company policy on preventing sexual harassment, which outlines the protocols for addressing a complaint. If you or a colleague is subjected to sexual harassment, it is important to immediately speak up and report the incident. If you have concerns or questions, contact your IC committee or HR representative for assistance.

In addition to your company and IC's official protocol for complaints, it is important for you to consider a few other key guidelines.
If you are comfortable doing so, directly tell the perpetrator to stop, either verbally or by email. Be firm and clear that the behavior is offensive and unwanted. If you do not feel comfortable speaking directly to the perpetrator or the problem persists, report it immediately to the IC.
The POSH Act allows complaints to be filed within three months of the last incident.

Further, the POSH Act does not mandate lawyers to appear before the IC. A complainant can seek support from colleagues or legal advisors if needed, but lawyers cannot represent the complainant, or respondent, or witnesses during IC proceedings.

Keep details of the harassment, such as a written log of all incident details or communication with the perpetrator, including date, time, location, and any others involved.
Once reported, keep the complaint confidential between you and your IC contact.

Guidelines for all employees

All employees and witnesses to sexual harassment must be aware of their company's policy on sexual harassment, the POSH Act, or any other relevant policy to ensure a fair investigation. Let’s discuss some helpful tips you can keep in mind when you encounter incidents of sexual harassment.

As an employee or a witness approached for help by a victim:

- Participate in training on sexual harassment and the POSH Act
- Report incidents of sexual harassment to the IC
- Empathize with the complainant; do not judge reactions as they may be in shock
- Offer moral support and assistance in reporting
- Remain neutral and co-operate fully with the IC investigation
- Avoid retaliation against complainants or participants in the investigation
- Keep the matter confidential, respecting the privacy of all parties involved in the complaint